

THE SUPREME COURT OF PAKISTAN
(Appellate Jurisdiction)

PRESENT:

MR. JUSTICE YAHYA AFRIDI, CJ

MR. JUSTICE SHAHID BILAL HASSAN

C.P.L.A. No. 5464/2025

[On appeal against judgment dated 08.10.2025 passed in W.P.No.110-D of 2024 by Peshawar High Court, D.I.Khan Bench]

Muhammad Zubair

...Petitioner(s)

Versus

Mst. Raheela Gul etc.

...Respondent(s)

For the Petitioner(s): : Mr. Saleemullah Khan Ranazai, ASC

For the Respondent(s) No.1: : Mr. Muhammad Mohsin Ali, ASC
Syed Rifaqat Hussain Shah, AOR

Date of Hearing : 02.04.2026

JUDGEMENT

SHAHID BILAL HASSAN, J- Brief facts germane to the filing of the instant petition are as such that Mst. Raheela Gul, along with her daughters namely Iman Zahra and Muzazin Zahra (respondents herein), instituted Family Suit No.70/3N of 2017 before the learned Judge, Family Court-I, Dera Ismail Khan against Muhammad Zubair Khalid (petitioner herein), seeking dissolution of marriage, recovery of dower amount, recovery of gold ornaments, maintenance for the minors, maintenance for respondent No.1, and possession of one-fourth share in a house.

The petitioner entered appearance and filed written statement contesting the claim. He also set up a plea for restitution of conjugal rights and recovery of gold ornaments. Subsequently, the petitioner

was proceeded against ex parte and an ex parte judgment and decree dated 11.03.2020 was passed by the learned trial Court in the following terms: (i) dissolution of marriage on the basis of Khula; (ii) decree for alternate market value of one-fourth share of the house; (iii) decree for recovery of five tolas gold ornaments; and (iv) maintenance allowance for the minors at the rate of Rs.4,000/- per month each. The remaining claims of the plaintiffs were dismissed for want of proof, while the petitioner's claim for restitution of conjugal rights was dismissed as infructuous.

Being aggrieved, the petitioner preferred an appeal, which was allowed, whereafter the matter was remanded to the learned trial Court vide judgment and decree dated 23.05.2022 for decision afresh.

The respondents then assailed the remand order through Writ Petition No.110-D of 2024 before the Peshawar High Court, Dera Ismail Khan Bench. Vide judgment dated 08.10.2025, the learned Single Judge accepted the writ petition, set aside the appellate judgment dated 30.05.2024, and restored the judgment and decree dated 25.01.2023 passed by the learned Family Court, hence this present petition before this Court.

2. Learned counsel for the petitioner contends that the learned High Court fell in error in exercising constitutional jurisdiction to interfere with a lawful remand order passed by the appellate Court. He submits that the appellate Court had rightly found material questions regarding the consideration to be relinquished in lieu of Khula and the ownership/recovery of gold ornaments to have remained inadequately determined by the trial Court, therefore remand for fresh adjudication, with opportunity to lead further evidence, was fully justified in the interest of complete justice. He

argues that the High Court could neither substitute its own view on factual matters nor restore the trial Court decree without addressing the deficiencies noticed by the appellate forum.

3. Conversely, learned counsel for the respondents supports the impugned judgment and submits that the learned Family Court had framed proper issues, recorded comprehensive evidence, and rendered a reasoned judgment on all disputed questions after full opportunity to the parties. He contends that the appellate Court, while concurring with the trial Court on all material issues, could not order remand merely for reappraisal of matters already adjudicated, particularly when no illegality, misreading, non-reading of evidence, or procedural defect had been identified. He maintains that remand is an exception and not the rule, and the High Court rightly set aside an unwarranted order which would only prolong litigation and restored the valid decree of the Family Court.

4. Heard. Record perused.

5. The only question requiring determination in the present petition is whether, in the facts and circumstances of the case, the learned appellate Court was justified in remanding the matter to the learned trial Court for fresh decision on certain issues, or whether, having the complete record and evidence before it, the appellate Court ought itself to have finally adjudicated the controversy in exercise of its appellate jurisdiction instead of directing a remand.

6. The power of remand is a corrective and exceptional jurisdiction, to be exercised with great circumspection and only where the interests of justice so demand, such as when a material issue has remained wholly undecided, essential evidence has not been considered, or a party has been denied a fair and meaningful opportunity to present its case. It is not intended to displace the

duty of an appellate Court to decide the matter on the record available before it, nor can it be invoked as a matter of routine. Equally, such power cannot be employed as a device to prolong litigation, reopen concluded matters, or afford a negligent litigant a fresh opportunity to fill lacunae, improve deficiencies, or repair the weakness of his case.¹

7. Applying the above principle to the facts of the present case, we find that none of the conditions justifying remand were shown to exist. The learned Family Court had framed issues arising from the divergent pleadings of the parties, afforded full opportunity to the parties to adduce their respective evidence, and thereafter rendered findings on the disputed questions through a reasoned judgment. Significantly, the observation of the learned appellate Court that pre-trial proceedings had not been conducted is not borne out from the record, for the judgment of the learned Family Court itself reflects due completion of the requisite proceedings prior to trial. The record further does not disclose that any material issue had remained wholly unaddressed, that any indispensable evidence had been excluded from consideration, or that either side had been denied a fair opportunity of hearing. In such circumstances, the proper course for the appellate Court was to examine the correctness of the findings recorded, reappraise the evidence where necessary, and determine the appeal finally in accordance with law.

¹ Noor Muhammad (deceased) through LRs and others v. Muhammad Ashraf and others (PLD 2022 SC 248); Messrs Shah Nawaz Khan and Sons v. Government of NWFP (2015 SCMR 945); Rehman Shah v. Sher Afzal (2009 SCMR 462); Habib Ullah v. Azmat Ullah (PLD 2007 SC 271); Mst. Shahida Zareen v. Iqrar Ahmed Siddiqui (2010 SCMR 119) Pramatha Nath Chowdhury And 17 Others v. Kamir Mondal and others (PLD 1965 SC 434); Fateh Ali v. Pir Muhammad & another (1975 SCMR 221); Nasir Ahmad v. Khuda Bakhsh & another (1976 SCMR 388); Arshad Ameen v. Messrs Swiss Bakery and others (1993 SCMR 216); Syed Abdul Hakim and others v. Ghulam Mohiuddin (PLD 1994 SC 52); Chairman, Wapda, Lahore and another v. Gulbat Khan (1996 SCMR 230)

8. We are constrained to observe that the learned appellate Court was also swayed by the fact that the petitioner/husband had been proceeded against ex parte. This, too, does not furnish lawful ground for remand. The record shows that the petitioner had entered appearance, filed written statement, raised objections to the claim, and participated in the proceedings. It was only at the stage of evidence that he chose not to pursue the matter and absented himself, whereupon he was rightly proceeded against ex parte in accordance with law. A litigant who, after entering contest, voluntarily withdraws from the proceedings cannot subsequently invoke his own default as a basis to seek reopening of the case or a fresh trial.

9. We are further constrained to observe that the learned appellate Court, while directing remand, did not identify any specific issue requiring limited reconsideration, nor did it suitably confine the scope of further proceedings to any narrowly defined question. Instead, the matter was sent back for decision afresh, thereby reopening an entire controversy already adjudicated after trial. Such an approach, absent compelling legal necessity, amounts to abdication of appellate responsibility. Once the complete record was before the appellate forum, it was incumbent upon it to pronounce upon the rights of the parties itself rather than expose them to another round of avoidable litigation.

10. For what has been discussed above, we are of the considered view that the learned appellate Court did not exercise its jurisdiction in accordance with law while passing the remand order. The record reflects that the suit was instituted in the year 2017, thus, despite the passage of almost a decade, the lis still remains unresolved. This assumes greater significance as the matter arises out of family

litigation, wherein the rights of spouses and children are involved and which, by its very nature, requires prompt and final adjudication rather than prolonged uncertainty.

11. For what has been discussed above, this petition is converted into an appeal and the same is allowed. The judgments of the learned High Court and of the learned appellate Court are set aside. The matter is remanded to the learned appellate Court, which shall decide the lis itself on the basis of the record already available, and after hearing the parties, within a period of three months from the date of receipt of certified copy of this order.

CHIEF JUSTICE

JUDGE

Announced in open Court on 02.06.2026 at Lahore.

JUDGE

'APPROVED FOR REPORTING'
M.A. Hassan